CHAPTER 1

ADMINISTRATION

SECTION BC 101
GENERAL

101.1 Title. This code shall be known and may be cited as the "*New York City Building Code*," "NYCBC" or "BC." All section numbers in this code shall be deemed to be preceded by the designation "BC."

101.2 Scope. The provisions of this code shall apply to the construction, alteration, movement, addition, replacement, repair, equipment, use and occupancy, location, maintenance, removal and demolition of every building or structure or any appurtenances connected or attached to such buildings or structures.

101.3 Intent. Refer to Chapter 1 of Title 28 of the *Administrative Code*.

101.4 Referenced codes. The other codes listed in Sections 101.4.1 through 101.4.6 and referenced elsewhere in this code shall be considered part of the requirements of this code to the prescribed extent of each such reference.

101.4.1 Electrical. The provisions of the *New York City Electrical Code* shall apply to the installation of electrical systems, including alterations, repairs, replacement, equipment, appliances, fixtures, fittings and appurtenances thereto.

101.4.2 Gas. The provisions of the *New York City Fuel Gas Code* shall apply to the installation of gas piping, gas appliances and related accessories as covered in this code. These requirements apply to gas piping systems extending to the inlet connections of appliances and the installation and operation of residential and commercial gas appliances and related accessories.

101.4.3 Mechanical. The provisions of the *New York City Mechanical Code* shall apply to the installation, alterations, repairs and replacement of mechanical systems, including equipment, appliances, fixtures, fittings and/or appurtenances, including ventilating, heating, cooling, air-conditioning and refrigeration systems, incinerators and other energy-related systems.

101.4.4 Plumbing. The provisions of the *New York City Plumbing Code* shall apply to the installation, alteration, repair and replacement of plumbing systems, including equipment, appliances, fixtures, fittings and appurtenances, and where connected to a water or sewage system and all aspects of a medical gas system.

101.4.5 Fire prevention. The provisions of the *New York City Fire Code* shall apply to:

1. The manufacturing, storage, handling, use, sale and transportation of hazardous materials, except for the installation of storage tanks and auxiliary storage tanks for oil-burning equipment;
2. The design, installation, operation and maintenance of devices, equipment and systems designed to prevent, mitigate, control and extinguish fire, explosions or other life safety hazards;
3. Emergency preparedness and planning, including the orderly evacuation of occupants of a building, structure or premises in the event of fire, explosion, biological, chemical or hazardous material incident or release, natural disaster or other emergency, or the threat thereof;
4. The prevention, mitigation and control of hazards to fire-fighters and emergency responders during emergency operations; and
5. The operation and maintenance of any manual, automatic or other fire alarm or fire-extinguishing device, equipment or system.

101.4.6 Energy. The provisions of the *New York City Energy Conservation Code* shall apply to all matters governing the design and construction and alteration of buildings for energy efficiency.

SECTION BC 102
APPLICABILITY

102.1 General. Where there is a conflict between a general requirement and a specific requirement, the specific requirement shall govern. Where, in any specific case, different sections of this code specify different materials, methods of construction or other requirements, the most restrictive shall govern.

102.2 Reserved.

102.3 Application of references. References to chapter or section numbers, or to provisions not specifically identified by number,

shall be construed to refer to such chapter, section or provision of this code.

102.4 Referenced standards. The standards referenced in this code and in the rules of the department shall be considered part of the requirements of this code to the prescribed extent of each such reference. Where differences occur between provisions of this code and referenced standards, the provisions of this code shall apply. Refer to Article 103 of Chapter 1 of Title 28 of the *Administrative Code* for additional provisions relating to referenced standards.

102.4.1 Editions of referenced standards. References to standards in this code shall be to the editions of those standards provided for in Chapter 35 of this code, or as otherwise provided by rule.

102.5 Partial invalidity. In the event that any part or provision of this code is held to be illegal or void, this shall not have the effect of making void or illegal any of the other parts or provisions.

102.6 Existing structures. The legal occupancy of any structure lawfully in existence at the time of the adoption or a subsequent amendment of this code shall be permitted to continue without change, except as is otherwise specifically provided in this code or as is deemed necessary by the commissioner for the general safety and welfare of the occupants and the public. Refer to Chapter 1 of Title 28 of the *Administrative Code* for additional provisions relating to existing structures.

SECTION BC 103
DEPARTMENT OF BUILDINGS

103.1 General. Refer to the New York City Charter and Chapter 1 of Title 28 of the *Administrative Code*.

SECTION BC 104
DUTIES AND POWERS OF COMMISSIONER OF BUILDINGS

104.1 General. The commissioner shall have the authority to render interpretations of this code and to adopt rules, policies and procedures in order to clarify and implement its provisions. Such interpretations, policies, procedures, and rules shall be in compliance with the intent and purpose of this code. See the New York City Charter and Chapter 1 of Title 28 of the *Administrative Code* for additional provisions relating to the authority of the Commissioner of Buildings.

SECTION BC 105
PERMITS

105.1 General. Permits shall comply with this section, with Article 105 of Chapter 1 of Title 28 of the *Administrative Code*, and with requirements found elsewhere in this code.

105.2 Required. Any owner or authorized agent who intends to construct, add to, alter, repair, move, demolish, or change the occupancy of a building or structure, or to erect, install, add to, alter, repair, remove, convert or replace any gas, mechanical or plumbing system, the installation of which is regulated by this code, or to cause any such work to be done, shall first make application for construction document approval in accordance with Chapter 1 of Title 28 of the *Administrative Code* and this chapter and obtain the required permit.

105.3 Work exempt from permit. Exemptions from permit requirements of this code as authorized in Chapter 1 of Title 28 of the *Administrative Code* and the rules of the department shall not be deemed to grant authorization for any work to be done in any manner in violation of the provisions of this code or any other laws or rules.

105.4 Validity of permit. The issuance or granting of a permit shall not be construed to be a permit for, or an approval of, any violation of any of the provisions of this code or of any other law. Permits presuming to give authority to violate or cancel the provisions of this code or other law shall not be valid. The issuance of a permit based on construction documents and other data shall not prevent the commissioner from requiring the correction of errors in the construction documents and other data. The commissioner is also authorized to prevent occupancy or use of a structure where in violation of this code or of any other law.

105.5 Foundation and earthwork permits. In addition to the requirements of Chapter 1 of Title 28 of the *Administrative Code* and Chapter 33 of this code, applications for foundation and earthwork permits shall include:

1. **Notice to adjoining owners.** Proof of notice to adjoining owners as required by Section 3304.3.2.
2. **Liens.** Satisfactory evidence that the property is free from any lien for unpaid city taxes, assessments, water rates, bail bonds, or judgments obtained by the city, together with consent in writing of the mortgagee, if there is a mortgage upon the property, and the consent in writing of the surrogate's court or supreme court, if the owner of the property is a minor or incompetent.

105.5.1 Notice to the department of commencement of foundation and earthwork. The foundation and earthwork permit shall be issued on the condition that the applicant will provide written notice to the department at least 24 but no more than 48 hours prior to the commencement of the foundation or earthwork as required by Section 3304.3.1.

105.6 Full demolition permits. In addition to the requirements of Chapter 1 of Title 28 of the *Administrative Code* and Chapter 33 of this code, applications for full demolition permits shall include:

1. **Utility certifications.** Certifications by the respective utility companies or governmental agencies having jurisdiction that all gas, electric, water, steam and other service lines to the building have been disconnected as required by Section 3303.2.5.
2. **Notice to adjoining owners.** Proof of notice to adjoining owners as required by Section 3306.3.2.
3. **Certification of rodent extermination.** Certification in accordance with department rules that the building has been treated effectively for rodent extermination as required by Section 3306.9.13.

105.6.1 Notice to department of commencement of demolition work. The full demolition permit shall be issued on the condition that the applicant will provide written notice to the department at least 48 hours prior to the commencement of demolition work.

105.7 Sign permits. In addition to the requirements of Chapter 1 of Title 28 of the *Administrative Code*, permits for the erection, alteration or installation of signs shall be subject to the special provisions set forth in Sections 105.7.1 through 105.7.5.

105.7.1 Identification number. Every sign permit shall have an identification number.

105.7.2 Changing copy or structural change of sign or sign structure. The changing of copy on a sign not permitted for changeable copy or any structural change of the sign or sign structure shall require a new permit pursuant to this code.

105.7.3 Permit does not constitute authorization for illegal sign. The issuance of a permit for the erection, alteration or installation of a sign or sign structure issued pursuant to this code shall not be deemed to constitute permission or authorization to maintain a sign that would otherwise be illegal without a maintenance permit for an outdoor sign if required pursuant to this code and department rule or that is otherwise illegal pursuant to any other provision of law nor shall any permit issued hereunder constitute a defense in an action or proceeding with respect to such an unlawful sign.

105.7.4 Name and business address of licensed sign hanger. The application shall contain the name and business address of the licensed sign hanger who is to perform or supervise the proposed work.

105.7.5 Outdoor advertising company. If the sign or sign location is under the control of an outdoor advertising company, as defined in Chapter 5 of Title 28 of the *Administrative Code*, the application shall be accompanied by the name and, where provided by rule, the registration number of such outdoor advertising company.

105.8 Temporary construction equipment permits. In addition to the requirements of Chapter 1 of Title 28 of the *Administrative Code*, permits for the erection, installation and use of temporary construction equipment shall be subject to the special provisions set forth in Sections 105.8.1 through 105.8.3.

105.8.1 Application. The need for each specific item of construction equipment shall be stated on the application.

105.8.2 Term of permit. Notwithstanding any other provision of this code, a construction equipment permit shall expire 1 year from the date of issuance, or when the permit holder's insurance or street obstruction bond expires, whichever is earlier. Such permit shall be renewable. Such permit must be in effect at all times during which the equipment is at the work site.

105.8.3 Special provisions for renewal of permit for a sidewalk shed. An application for the renewal of a construction equipment permit for a sidewalk shed used in connection with the alteration of a building shall be accompanied by a report, acceptable to the department, prepared by a registered design professional who has examined that part of the premises on which the work requiring the use of a sidewalk shed is being performed. Such report shall document the condition of the applicable part of the premises and the scope of work that has been performed thereon since the issuance of the permit and shall provide an estimate of the additional time needed to complete the work.

105.9 Mandatory sewer and catch basin work required by Section 24-526 of the *Administrative Code*. In addition to the requirements of Chapter 1 of Title 28, an applicant for a permit who is required pursuant to Section 24-526 of the *Administrative Code* to construct or repair defects in sewers or catch basins that lie outside the property shall submit certification from the Department of Environmental Protection that the applicant or owner has provided the Department of Environmental Protection with:

1. A performance bond or other security satisfactory to the Department of Environmental Protection and approved as to form by the Law Department for the full cost, as estimated by the Department of Environmental Protection, of constructing the part of the storm water drainage system for such property which shall lay outside the property line and repairing defects in such construction, if and as required by Section 24-526 of the *Administrative Code*;
2. Any license or other written instrument that the Department of Environmental Protection or the Law Department may reasonably request that gives the Department of Environmental Protection, its agents and contractors and the surety for a performance bond described in Item 1 above the legal right to enter private property to perform the work described in Item 1

above, pursuant to the terms of the performance bond or in accordance with the conditions of acceptance of other security described in Item 1 above, and the legal right to connect to, to extend or to discharge storm water into any private sewer authorized as a point of disposal pursuant to Section 24-526 of the *Administrative Code*, in the event that the owner of property fails to do so, if and as required pursuant to Section 24-526 of the *Administrative Code*;

3. Insurance of a kind and in an amount that the Department of Environmental Protection and the Law Department deem satisfactory to insure the city fully for all risks of loss, damage to property or injury to or death of persons to whomever occurring, arising out of or in connection with the performance of all work described in this section.

SECTION BC 106
RESERVED

SECTION BC 107
CONSTRUCTION DOCUMENTS

107.1 General. Construction documents shall comply with Chapter 1 of Title 28 of the *Administrative Code*, this section and other applicable provisions of this code and its referenced standards.

107.2 Required construction documents. In addition to the requirements of Chapter 1 of Title 28 of the *Administrative Code*, the applicant shall submit any and all of the documents specified in Sections 107.3 through 107.15 as appropriate to the nature and extent of the work proposed.

107.2.1 Composite plans. Composite plans showing architectural, structural, and mechanical parts and related energy use systems of a building may be submitted provided that a clear understanding of each part and system is not impaired.

107.2.2 Multiple building developments. The same set of plans may be used for several buildings of the same construction, if such buildings are located on adjoining lots under the same ownership, and if applications for construction document approval for the lots are filed simultaneously.

107.3 Lot diagram. The lot diagram shall show compliance with the *New York City Zoning Resolution*, indicating the size, height, and location of the proposed construction including parking and curb cuts; all existing structures on the zoning lot and their distances from lot and street lines; the established grade and existing curb elevations; and the proposed final grade elevations of the site shown by contours or spot grades at reasonable intervals. The lot diagram shall be drawn in accordance with an accurate boundary survey to the city datum, made by a land surveyor, which shall be attached to and form part of the application. A complete zoning analysis shall accompany the lot diagram with citation to the relevant sections of the *New York City Zoning Resolution*.

107.4 Building classification statement. The statement shall identify:

1. The occupancy group or groups that apply to parts of the building in accordance with Section 302;
2. The occupancy group of the main use or dominant occupancy of the building;
3. The construction class of the building in accordance with Section 602;
4. The structural occupancy/risk category in accordance with Table 1604.5;
5. The height of the building as defined in Section 502.1;
6. The applicable measurements to the highest and lowest level of Fire Department access;
7. Whether the building is inside or outside of the fire districts; and
8. For multiple dwellings, the multiple dwelling classification as established by the *New York State Multiple Dwelling Law*.

107.5 Means of egress plans. Floor and roof plans shall show compliance with the requirements of Chapter 10, with sufficient notations indicating egress features and complete egress analysis as required by this code.

107.6 Architectural plans. Construction documents for all buildings shall provide detailed drawings of all architectural elements of the building showing compliance with the code, including but not limited to doors, windows and interior finish schedules, details necessary to substantiate all required fire protection characteristics, details demonstrating compliance with the *New York City Energy Conservation Code* and details demonstrating compliance with all accessibility requirements of this code. Site safety features shall be shown where applicable. Plans shall also provide details of the exterior wall envelope as required, including but not limited to flashing, insulation, vapor retarder, intersections with dissimilar materials, corners, end details, control joints, intersections at roof, eaves or parapets, means of drainage, water-resistive membrane and details around openings.

Exception: Where a curtain wall system is to be employed containing elements that are normally detailed on shop or working drawings, approval of construction documents shall be conditioned upon deferred submittal of such shop or working drawings

showing the approval of the registered design professional who prepared the architectural construction documents, or of a signed statement by such registered design professional that such drawings were prepared to his or her satisfaction. In such cases, submittal of construction documents showing compliance with the *New York City Energy Conservation Code* related to such curtain wall may also be deferred. Such deferred submittal of construction documents must demonstrate that the estimated annual energy use for the envelope in the energy analysis submitted as part of the initial filing is not exceeded.

107.7 Structural plans. Structural plans shall include the data and information described in this section and in Chapter 16. Structural calculations shall be made available to the department upon request.

Exceptions:

1. Where structural elements are normally detailed on shop or working drawings, approval of construction documents shall be conditioned upon deferred submittal of such shop or working drawings showing the approval of the registered design professional who prepared the structural construction documents, or of a signed statement by such registered design professional that such drawings were prepared to his or her satisfaction.

2. In cases where the detailing of structural elements has been made on the basis of fire-resistance ratings, load tables, or similar data as given in manufacturer's catalogues, approval of construction documents shall be conditional upon submission of a manufacturer's designation attesting to the accuracy of the data and indicating that such data were derived in conformance with the provisions of this code. Where the detailing of structural elements has been made on the basis of data published in technical documents of recognized authority issued or accredited by the agency or association promulgating the applicable referenced standard, such manufacturer's designation will not be required.

107.7.1 Foundation plans. Foundation plans shall show compliance with the requirements of Chapter 18 of this code regarding foundation design and shall show the plan locations, design loads, design elevations of the bottoms, and details as to sizes, reinforcements, and construction of all footings, piers, foundation walls, pile groups, and pile caps. The levels of footings of adjacent structures shall be indicated or, if the adjacent structures are pile supported, this shall be stated. Where applicable, the plans shall include underpinning details. In addition, there shall be a statement indicating the character and minimum class of the soil strata required for the support of the foundation; the allowable soil pressure used for the design of footings; and the character, class, and presumptive bearing capacity of the bearing stratum to which piling is required to penetrate. The types and design capacities of piling and the records of required borings or test pits shall also be shown. In addition, foundation plans shall include insulation details as required by the *New York City Energy Conservation Code*.

107.7.2 Floor plans. Floor plans and sections showing all structural requirements shall be provided for all levels.

107.7.3 Detailed drawings. Drawings shall show sizes, sections, and locations of members, and such other information as may be required to indicate clearly all structural elements and special structural engineering features.

107.7.4 Column schedules. Column schedules shall show the design load contributed by the framing at any level and the total accumulated design load at each level.

107.7.5 Truss forces. Where trusses are employed, a diagram or table shall indicate the loads or moments in the various members under the design loading conditions. The requirement for a diagram or table may be waived when the trusses consist of elements selected from load tables or similar data, subject to the requirements for verification described in this code.

107.7.6 Prestressing forces. Where pre-stressed members are employed, a schedule or table shall show the total prestressing forces and the method and sequence of application.

107.8 Earthwork plans. Where the application is sought solely for or includes earthwork, excavation or fill operations, including but not limited to site decontamination, soil remediation and grading, the applicant shall submit 1) a lot diagram showing the exact location of the lot and dimensions to the nearest corner; and 2) plans showing the exact location, extent, and depth or height of the proposed earthwork, excavation or fill operation and any existing utilities, foundations or other infrastructure potentially impacted by the earthwork, excavation or fill operation. For excavation operations, the plans shall also indicate the levels of footings of all adjacent structures or, if the adjacent structures are pile supported, this shall be stated. Where applicable, the plans shall also include underpinning details, soil information in accordance with Chapter 18, and a final grading plan representing the lot after all earthwork, excavation or fill operations have been completed.

107.9 Fire protection system plans. Construction documents for fire protection systems shall include a plot plan to scale indicating the location of the system in relation to the rest of the building and shall comply with Sections 107.9.1 through 107.9.4. Such plans shall not be required in connection with applications for limited standpipe alterations and limited sprinkler alterations.

107.9.1 Sprinkler systems. Sprinkler systems plans shall comply with Section 903.1.2.

***107.9.2 Alternative automatic fire-extinguishing systems.** Notwithstanding any other provision of this code, design and installation documents for the installation of alternative automatic fire-extinguishing systems shall be filed with and reviewed by

the Fire Department for compliance with this code, the *New York City Fire Code* and other applicable laws and regulations in accordance with Section 105 of the *New York City Fire Code*.

**Section BC 107.9.2 was amended by Local Law 195 of 2018. This law has an effective date of May 30, 2019.*

107.9.3 Standpipe systems. Standpipe systems plans shall comply with Section 905.1.1.

107.9.4 Fire alarm and detection systems. Fire alarm and detection systems plans shall comply with Section 907.1.1.

107.10 Sign installation plans. Construction documents for sign applications shall comply with Section H105.2 in Appendix H.

***107.11 Discharge of sewage and discharge and/or management of stormwater runoff.** Applications for construction document approval shall comply with Sections 107.11.1, 107.11.2 and 107.11.3.

**Section 107.11 was amended by: Local Law 97 of 2017. This law has an effective date of June 1, 2019.*

107.11.1 Sewage. Applications for construction document approval shall include submittal documents relating to the availability and feasibility of a public sanitary or public combined sewer and/or other approved discharge for sewage in accordance with Sections 107.11.1.1 and 107.11.1.2 for the following types of applications:

1. New buildings that include any fixtures that produce sewage;
2. Alterations that require an increase in size to an existing sanitary or combined sewer connection; and/or
3. Alterations requiring a new connection to a sanitary or combined sewer.

107.11.1.1 Connection feasible and available. Where a public sanitary or combined sewer is certified by the Department of Environmental Protection or certified by an applicant in accordance with rules of such department to be available and connection thereto feasible, the applicant shall submit:

1. **Department of Environmental Protection certification of availability and feasibility.** A sewer certification issued by the Department of Environmental Protection that a public sanitary or combined sewer is available and connection thereto is feasible. Applications for such certification shall be made to the Department of Environmental Protection on forms specified by such department (Department of Environmental Protection "house/site connection proposal application" or other form as specified in the rules of such department) and shall be reviewed and approved by such department in accordance with the rules of such department. Such certification may be conditioned by such department on part or all of the sewage to be disposed of with an on-site disposal system or with the use of an alternative disposal system; or
2. **Applicant certification of availability and feasibility.** A certification submitted by the applicant to the Department of Environmental Protection in accordance with the rules of such department that a public sanitary or combined sewer is available and connection thereto is feasible, in such cases where the availability and feasibility of connection to a public sanitary or combined sewer are allowed to be certified by the applicant pursuant to such rules. Such certification shall be on forms specified by such department (Department of Environmental Protection "house/site connection proposal application" or other form as specified in the rules of such department).

107.11.1.2 Connection not feasible or not available. Where a public sanitary or combined sewer is not available, or where connection thereto is not feasible, the applicant shall submit:

1. **Department of Environmental Protection or applicant certification of unavailability or non-feasibility.** (i) A certification issued by the Department of Environmental Protection that a public sanitary or combined sewer is not available or that connection to an available sewer is not feasible. Such certification shall be on forms specified by such department (Department of Environmental Protection "house/site connection proposal application" or other form as specified in the rules of such department) or (ii) A certification submitted by the applicant to the Department of Environmental Protection that a public sanitary or combined sewer is not available or that connection thereto is not feasible, in such cases where the availability and feasibility of connection to a public sanitary or combined sewer are allowed to be certified by the applicant pursuant to the rules of such department. Such certification shall be on forms specified by such department (Department of Environmental Protection "house/site connection proposal application" or other form as specified in the rules of such department); and
2. **On-site disposal.** A proposal for the design and construction of a system for the on-site disposal of sewage conforming to the provisions of this code and other applicable laws and rules including but not limited to minimum required distances from lot lines or structures and subsoil conditions. Construction documents for such system shall be subject to the approval of the department.

107.11.2 Stormwater. Applications for construction document approval shall include submittal documents relating to the availability and feasibility of a public combined or storm sewer or other approved method for stormwater discharge in accordance with Sections 107.11.2.1 and 107.11.2.2 for the following types of applications:

1. New buildings;
2. Alterations of buildings proposing horizontal building enlargement; and/or
3. Alterations that increase impervious surfaces on the tax lot.

Exceptions:

1. Applications for construction document approval for the alteration of an existing one- or two-family dwelling need not include such submittal documents, where the area of a proposed horizontal building enlargement and any proposed increase in impervious surfaces combined is less than or equal to 200 square feet (19 m2).

   1.1 This exception shall not apply if the horizontal building enlargement and increase in impervious surface related to the current application for construction document approval and any other enlargement or increase in impervious surface made on the same tax lot after July 1, 2008 together exceed 200 square feet (19 m2).

2 Applications for construction document approval for the alteration of a building need not include such submittal documents, where the area of a proposed horizontal building enlargement and any proposed increase in impervious surfaces on a lot combined is less than or equal to 1,000 square feet (93 m2), and on-site disposal of stormwater conforming to the provisions of the applicable laws and rules as determined by the department is proposed for such enlargement and/or increase in impervious surface.

   2.1 This exception shall not apply where on-site disposal cannot be designed to conform to the provisions of the applicable laws and rules including but not limited to minimum required distances from lot lines or structures or subsoil conditions as determined by the department.

   2.2 This exception shall not apply if the horizontal building enlargement and increase in impervious surface related to the current application for construction document approval and all other enlargements or increases in impervious surface made on the same tax lot after July 1, 2008 together exceed 1000 square feet (93 m2).

107.11.2.1 Connection feasible and available. Where a public combined or storm sewer is certified by the Department of Environmental Protection or certified by an applicant in accordance with rules of such department to be available and connection thereto is feasible, applicants shall submit:

1 **Department of Environmental Protection certification of availability and feasibility.** A sewer certification issued by the Department of Environmental Protection that a public storm or combined sewer is available and connection thereto is feasible. Applications for such certification shall be made to the Department of Environmental Protection on forms specified by such department (Department of Environmental Protection "house/site connection proposal application" or other form as specified in the rules of such department) and shall be reviewed and approved by such department in accordance with the rules of such department. Such certification may be conditioned by such department on part or all of the stormwater runoff to be disposed of through an on-site detention or retention system, or by use of alternative disposal methods including but not limited to ditches, swales or watercourses; or

2 **Applicant certification of availability and feasibility.** A certification submitted by the applicant to the Department of Environmental Protection in accordance with the rules of such department that a public storm or combined sewer is available and connection thereto is feasible, in such cases where the availability and feasibility of connection to a public storm or combined sewer are allowed to be certified by the applicant pursuant to such rules. Such certification shall be on forms specified by such department (Department of Environmental Protection "house/site connection proposal application" or other form as specified in the rules of such department).

107.11.2.2 Connection not feasible or not available. Where a public combined or storm sewer is not available, or where connection thereto is not feasible, applicants shall submit:

1. **Department of Environmental Protection or applicant certification of unavailability or non-feasibility.** (i) Certification issued by the Department of Environmental Protection that a public storm or

combined sewer is not available or that connection thereto is not feasible. Such certification shall be on forms specified by such department (Department of Environmental Protection "house/site connection proposal application" or other form as specified in the rules of such department); or (ii) Certification submitted by the applicant to the Department of Environmental Protection that a public storm or combined sewer is not available or that connection thereto is not feasible, in such cases where the availability and feasibility of connection to a public storm or combined sewer are allowed to be certified by the applicant pursuant to rules of such department. Certification shall be on forms specified by such department (Department of Environmental Protection "house/site connection proposal application" or other form as specified in the rules of such department); and

2. **On-site disposal.** A proposal for the design and construction of a system for the on-site disposal of stormwater conforming to the provisions of this code and other applicable laws and rules including but not limited to minimum required distances from lot lines or structures and subsoil conditions. Construction documents for such system shall be subject to the approval of the department.

****107.11.3 Post-construction stormwater management facilities.** A post-construction stormwater management facility that is constructed as part of a covered development project shall comply with the rules of the Department of Environmental Protection and with this code.

**Section 107.11.3 was added by: Local Law 97 of 2017. This law has an effective date of June 1, 2019.*

***Section 107.11.3 was amended by: Local Law 91 of 2020. This law has an effective date of March 26, 2021.*

107.12 Predemolition photographs. In addition to the requirements of Section 3306.3, construction documents for full demolition shall comply with the following requirements for archival photographs:

1. **Number required.** Applications shall contain two sets of photographs of the building or buildings to be demolished or removed. Both sets shall be received by the department on behalf of the New York City Landmarks Preservation Commission and the New York City Municipal Archives Division of the Department of Records and Information Services.
2. **Format.** The photographs shall conform to the standards and specifications established by rules promulgated by the commissioner upon the advice of the commissioner of the Department of Records and Information Services and the chairperson of the Landmarks Preservation Commission.

   Exception: Applications made on behalf of the New York City Department of Housing Preservation and Development or made pursuant to Article 215 of Chapter 2 of Title 28 of the *Administrative Code* are exempt from the requirements of this section.

107.13 Energy efficiency. Construction documents shall include compliance documentation as required by the *New York City Energy Conservation Code*.

107.14 Mechanical and fuel gas plans. Construction documents for gas piping, heating, ventilation, refrigeration and other mechanical work to be performed shall be submitted as per *New York City Mechanical and Fuel Gas Codes*.

107.15 Plumbing plans. Construction documents for plumbing work to be performed shall be submitted as per the *New York City Plumbing Code*.

SECTION BC 108
TEMPORARY STRUCTURES AND USES

108.1 General. Refer to Chapter 1 of Title 28 of the *Administrative Code*.

SECTION BC 109
FEES

109.1 Payment of fees. Refer to Chapter 1 of Title 28 of the *Administrative Code*.

SECTION BC 110
INSPECTIONS

110.1 General. Except as otherwise specified, inspections required by this code or by the department during the progress of work may be performed on behalf of the owner by approved agencies or, if applicable, by special inspectors. However, in the interest of public safety, the commissioner may direct that any of such inspections be performed by the department. All inspections shall be performed at the sole cost and expense of the owner. Refer to Article 116 of Chapter 1 of Title 28 of the *Administrative Code* for additional provisions relating to inspections.

110.2 Preliminary inspection. Refer to Chapter 1 of Title 28 of the *Administrative Code*.

110.3 Required progress inspections. The inspections set forth in Sections 110.3.1 through 110.3.8 shall be made during the progress of work to verify substantial compliance with the code and with approved construction documents.

110.3.1 Footing and foundation inspection. Footing and foundation inspections shall be made after excavations for footings are complete and any required reinforcing steel is in place. For concrete foundations, any required forms shall be in place prior to inspection. Materials for the foundation shall be on the job, except where concrete is ready mixed in accordance with ASTM C 94, the concrete need not be on the job.

110.3.2 Lowest floor elevation. In areas of special flood hazard, upon placement of the lowest floor, including the basement (for flood zone purposes), and prior to further vertical construction, the elevation inspection report required in Item 1 of Section G105.3 of Appendix G shall be submitted to the department.

110.3.3 Structural wood frame inspection. Inspections shall be performed for wood structural framing to determine compliance with the approved construction documents.

Exception: Prefabricated wood structural elements and assemblies subject to Section 1704.6.1 through 1704.6.3 shall not be subject to progress inspection.

110.3.4 Fire-resistance-rated construction inspection. Fire-resistance-rated construction shall be inspected to determine compliance with the approved construction documents, including inspection of the following work:

1. Fire-resistance-rated partitions, floors, ceilings, shafts; and
2. Fire shutters.

Exception: Where the scope of work affecting an existing fire-rated wall assembly is limited to through-penetration firestopping and, in the course of work, the cutting away or removal of any part of the existing fire-resistance-rated construction becomes necessary in the general area surrounding the penetration, not to exceed 4 square feet (0.37 m2) in any given area, the progress inspection for fire-resistance-rated construction shall not be required provided that the special inspection agency for the through-penetration firestopping special inspection verifies that the removed portion of fire-resistance-rated construction (i) is less than 4 square feet (0.37 m2), and (ii) has been restored to its original condition.

110.3.5 Energy code compliance inspections. Inspections shall be made to determine compliance with approved construction documents.

110.3.6 Other inspections. In addition to the inspections specified above, the commissioner is authorized to make or require other inspections of any construction work to ascertain compliance with the provisions of this code and other laws that are enforced by the department.

***110.3.7 Tenant protection plan compliance inspections.** For buildings undergoing work for which a tenant protection plan is required by Article 120 of Title 28 of the Administrative Code, inspections shall be made by the department to determine compliance with the tenant protection plan.

**Section 110.3.7 was amended by Local Law 154 of 2017. This law has an effective date of December 28, 2017.*

***Section 110.3.7 was amended by Local Law 106 of 2019. This law has an effective date of March 8, 2020.*

110.4 Special inspections. Special inspections required by this code or by the commissioner shall be performed by special inspection agencies.

110.5 Final inspection. Refer to Article 116 of Chapter 1 of Title 28 of the *Administrative Code*.

110.6 Issuance of certificate of compliance. Upon satisfactory inspection of service equipment and the satisfaction of all the requirements for sign-off, the department shall issue a certificate of compliance as applicable for the following service equipment:

1. Elevators;
2. Escalators;
3. Moving walkways;
4. Heating systems; and
5. Dumbwaiters.

110.7 Approved inspection agencies. Refer to Articles 114 and 115 of Chapter 1 of Title 28 of the *Administrative Code*.

110.8 Inspection requests. Refer to Chapter 1 of Title 28 of the *Administrative Code*.

110.9 Satisfactory inspection report required. Portions of work requiring inspection may be sequenced or phased to allow continuing progress of that work provided that work shall not be done beyond the point indicated in each successive required inspection for that phase. The inspector shall either indicate the portion of the construction that is satisfactory as completed, or notify the permit holder or the superintendent of construction wherein the same fails to comply with this code. Any portions that do not comply shall be corrected and such portion shall not be covered or concealed until corrected. The person performing the inspection shall complete a report of satisfactory inspection. Refer to Chapter 1 of Title 28 of the *Administrative Code*.

SECTION BC 111
CERTIFICATE OF OCCUPANCY

111.1 General. Refer to Chapter 1 of Title 28 of the *Administrative Code*.

SECTION BC 112
SERVICE UTILITIES

112.1 General. Refer to Chapter 1 of Title 28 of the *Administrative Code*.

SECTION BC 113
RESERVED

SECTION BC 114
VIOLATIONS

114.1 General. Refer to Chapter 2 of Title 28 of the *Administrative Code*.

SECTION BC 115
STOP WORK ORDER

115.1 General. Refer to Chapter 2 of Title 28 of the *Administrative Code*.

SECTION BC 116
UNSAFE STRUCTURES AND EQUIPMENT

116.1 General. Refer to Chapters 2 and 3 of Title 28 of the *Administrative Code*.